

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 12, 2015

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook, Mr. Johnson, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Cook and Mr. Roybal, agenda item #24(b) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 22, 2014. Motion (per Consent Agenda) carried.

[CA] Minutes from Sine Die Session of the Governing Body on January 5, 2015. Motion (per Consent Agenda) carried.

[CA] Minutes from First Regular Meeting of the Governing Body on January 5, 2015. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry, City Treasurer Lois Huff provided information on vouchers payable to: Ameri-Tech HVAC Services (equipment replacements paid from special distribution funds for one time expenditures); AMPO (professional membership dues to Association of Metropolitan Planning Organizations), and Lock Shop of Cheyenne, Inc. (spare keys for newer trucks). Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing for input and comments on a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Mason Properties, Inc. (d/b/a to be determined), 2801 E. Lincolnway, Cheyenne, Wyoming (License currently held by KZ Corporation d/b/a Daisy Duke's Bar, 2801 E. Lincolnway, Cheyenne, Wyoming). Upon inquiry, John Mason, applicant, briefly reviewed adjacent property he owns and improvements he has made;

advised he had previously owned the building and held the liquor license years ago, and stated his intent for use of the license will be to tear down the existing building and rebuild for use as a small retail plaza, which will include a package liquor store. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to the Finance Committee.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the NW1/4 of Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road). Frank Cole, President, United Western Corporation, requested the item be postponed for two weeks to allow for synchronizing of timing for the affiliated final plat and re-zoning actions. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Mr. Cook moved to postpone to January 26, 2015, seconded by Mr. Luna. Upon inquiry, Mayor Kaysen clarified that pursuant to Robert's Rules of Order the governing body can not postpone items for more than two weeks (i.e. to next regular meeting). Motion to postpone carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, the S1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located at 812 Storey Boulevard). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4050)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from Conditional MUB Mixed-Use Business (Ordinances #3891 & #3919) to MUR Mixed-Use Residential for Lots 1, 2, and the north 66 feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of East 23rd Street and Russell Avenue). Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4051)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from HR High Density Residential (County) to HR-2 High Density Residential-Developing for a replat of portions of Tracts 245, 246, 247, and 248, and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming, to be known as Carter Cottages (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). James Perrott Macneil provided copies of property tax assessments for properties located west of Cheyenne and commented the properties involve his family's lineage (Note: Copies on file with City Clerk's Office). Mayor Kaysen noted the copies were from the County Assessor's office and appeared to be for various properties that are part of the Belvoir Ranch. Mr. Cook moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body. (#4052)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of Tracts 1 and 7 and all of Tracts 26 and 27, Dell Range Addition; Lots 1 and 2, Smithson View, Laramie County,

Wyoming, to be known as Thomas Heights Annexation (located between Ridge Road and College Drive along Thomas Road). Speaking in opposition to annexation and the affiliated re-zoning and final plat actions as proposed were: Gail Sundell and Kay McAdams. Comments included the following topics: Buffer screening; cash-in-lieu of open space agreement; additional exit street(s) from the development; streets, sidewalks and future maintenance costs; responsible growth and proper planning; community growth and its effect on neighboring county residents; developer construction debris/dust control concerns; zoning, and providing for open areas, such as a park and greenway. Ms. McAdams voiced opposition to a proposed street name within the development affiliated with her family, and James Perrott Macneil voiced his objection to any annexation actions. Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4053)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-1 (County), Agricultural and Rural Residential, to AR, Agricultural Residential, for Lot 5, Block 8, Thomas Heights, and from A-1 (County), Agricultural and Rural Residential, and AR (County) Agricultural Residential, to MR-2, Medium-Density Residential-Developing, for the remainder of Thomas Heights, Cheyenne, Wyoming (located between Ridge Road and College Drive along Thomas Road). Kay McAdams questioned the appropriateness of the proposed AR zone classification for Lot 5, Block 8, and expressed concerns with the AR vs. MR-2 zoning. Mayor Kaysen clarified the owner of the parcel had requested the AR zone. Mr. Cook moved to approve on third and final reading, seconded by Ms. Williams. Upon inquiry regarding the lot proposed to be changed to AR, Brad Emmons, AVI, agent for the applicant, noted the lot owners plan to keep it as a residential use. Discussion topics included: Proposed AR zone, and differences between County vs. City AR zones vs. agricultural type zones. Motion carried. Voting "yes" -- all members of the governing body. (#4054)

AN ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low Density Residential and LR-2 Low-Density Residential, Developing to MR-2 Medium-Density Residential, Developing for Cheyenne, Wyoming, the Bluffs, 10th Filing (located north of and adjacent to Foothills Road between Point Bluff and Mountain Road) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Approving Water and Sanitary Sewer Services, by Outside User's Agreement, with Cheyenne Rail Hub, LLC, for portions of the Northwest 1/4 of Section 27 and the Northeast 1/4 of Section 28, T13N, R67W of the 6th P.M., Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5645)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Carter Cottages, a replat of portions of Tracts 245, 246, 247, and 248 and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). Motion (per Consent Agenda) carried. (#5646)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Thomas Heights, a replat of Lots 1, 2 and 3, Smithson View, Tracts 26 and 27, and a portion of Tracts 1 and 7, Dell Range Addition, 2nd Filing, Cheyenne, Laramie County, Wyoming (located between Ridge Road and College Drive, south of Summit Drive). Gail Sundell questioned timing of implementation of the Level 3 screening; cash-in-lieu of open space agreement; possibility of an exit from Carla Drive into Thomas Heights, and sidewalks from Thomas Heights south into the City. Brad Emmons, AVI, agent for applicant, Guardian Companies, advised the developer would be building a 6 foot privacy fence along the north line, and provided information on Level 3 buffering/landscaping requirements and the cash-in-lieu of open space agreement, noting total amounts of useable open space have not yet been calculated and would be reviewed during the design phase. Mr. Emmons provided history on why a road from Carla Drive was not planned based upon past development action, and stated sidewalks would be provided as required, indicating any sidewalks along College Drive would be a WYDOT decision as it is a state highway under the state's jurisdiction, noting that WYDOT staff would be involved in reviewing the plans. Kay McAdams commented on developer benefits; requested the name Sailor Street be removed from the plat; expressed that she wants to be able to do what she wants with her property in the future relative to street names and use of her property, and indicated she would like assurance from the developer that this is going to be a quality housing development. Mr. Emmons stated one of the owners involved in the development project requested Sailor Street be the name of one of the streets within the subdivision, and that there are no plans to change this. He submitted a copy of the letter from the respective owners requesting the street name (Note: Copy on file with the City Clerk's Office). James Perrott Macneil stated he was exercising power of attorney and forbid the City from using any land he owns. During Mr. Macneil's comments, Mr. Brown raised a point of order that comments were off subject from the agenda topic with Mayor Kaysen concurring with the point of order. Karen Larson expressed her concerns with current traffic speed and control measures on College Drive, and street darkness, due to lack of lighting, on Thomas Road at College Drive and Ridge Road intersections; questioned whether some type of signaling mechanism for fire trucks exiting from the station on College Drive could be installed, and commented in support of open public space within the development. Mr. Cook moved to adopt contingent upon a cash-in-lieu agreement involving parks fees, seconded by Ms. Williams. Upon inquiry, Mr. Emmons stated the City has a franchise agreement with Cheyenne Light, Fuel and Power (CLFP) and when the design is done they will work with CLFP and other utility providers with regard to roads, lighting, services and placement of water and sewer. Mr. Emmons also provided information on planned detention ponds and potential use of some as open space areas. Chief Jim Martin, Fire and Rescue Department, advised the fire station on College Drive is outside City limits. He stated once the Thomas Heights development area is annexed it becomes the City's responsibility for Fire and Rescue response but they do have a mutual aid agreement with the county (re. fire stations) if a request by the City for assistance is needed. Motion carried. Voting "yes" -- all members of the governing body. (#5647 RES/#6278 CON)

[CA] RESOLUTION - Designating the Sundays during 2015 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Triumph Addition, 2nd Filing, a replat of Lot 1, Block 1, Triumph Addition; Lot 1, Block 4, Harmony Center; and a portion of Grand Harmony Drive and Center Drive rights-of-way, Cheyenne, Wyoming

(located at the northwest corner of the intersection of W. College Drive and Grand Harmony Blvd) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Nelson Subdivision, a replat of the north 180.29 feet of Tract 12, Clear View Tracts, Laramie County, Wyoming (located at the southeast corner of the intersection of E. Fox Farm Road and Avenue C-2) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] Professional Services Agreement between the City of Cheyenne, Urban Planning Office, and Ayres Associates for Brownfield Revolving Loan Fund Implementation (Environmental Protection Agency Brownfield Revolving Loan Fund). Motion (per Consent Agenda) carried (amount not to exceed \$100,000.00). (#6275)

Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and A.V.I., p.c., for the High Plains Road 35% Design Plan (MPO Planning funds). James Perrot Macneil commented that he owned all of the land (i.e. involving the future road). Mr. Brown reported there was no recommendation from Finance Committee on the item due to lack of a second on the motion. Mr. Brown moved to approve in an amount not to exceed \$85,300.00, seconded by Mr. Roybal. Mr. Shanor moved to amend Exhibit A (Scope of Work), Task D.2, Steering Committee Meetings, by adding a condition that Councilman Luna be a member of the Steering Committee, seconded by Ms. Williams. Upon inquiry, Mr. Luna confirmed he is interested in the project and would like to serve on the committee. Motion to amend carried. Voting "yes" -- all members of the governing body. Discussion topics included: 2004 South Cheyenne Streets Master Plan; connectivity between I-25 (near Swan Ranch interchange) and South Greeley Highway; past County replatting of Speedway Road; efficient use of taxpayers dollars, and planning for future growth in the area. Upon inquiry, Sreyoshi Chakraborty, Metropolitan Planning Organization (MPO), advised the intent of the corridor plan is to begin design of a future road to connect with the High Plains interchange and that the plan will provide for a proposed route and general alignment to businesses and developments in the area. Tom Mason, MPO Director, provided information on the proposed roadway location generally (between I-25 and South Greeley Highway) and approximate distance involved (four miles), stating most of the land currently is open prairie; reviewed and discussed the 2004 South Cheyenne Streets Master Plan and the need to take the plan to a 35% level for the High Plains Road portion, and described plan elements that would be studied and included in the design plan, such as road width, drainage and engineering details. He explained discussions with landowners relative to future acquisition of any needed rights-of-way would also be conducted. Mayor Kaysen noted a map would be forthcoming once the design is created to determine where the alignment will go. Main motion, as amended, carried. Voting "yes" -- all members of the governing body with the exception of Mr. Valdez and Ms. Williams voting "no". (#6276)

[CA] Juvenile Accountability Block Grant Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for funding of Municipal Juvenile Court staffing and services. Motion (per Consent Agenda) carried (revenue to the City in the amount of \$10,679.00). (#6277)

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients -- referred to Finance Committee.

[CA] Contract Modification No. 4 to Contract No. 6041 between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, to reduce held retention from 10% to 5% on the entire Municipal Pool and Expansion Project as allowed by W.S. §16-6-702 (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried. (#6041)

Amendments No. 1 to City Contracts No. 6137, 6134 and 6135 between the City of Cheyenne, Parks and Recreation Department, and Reiman Corp. and Subsidiary; Laramie County, Wyoming, and WC Investments, Inc., respectively, relating to the Polk Avenue Project and pertaining to reimbursements to be paid to the City of Cheyenne for portions of the costs of construction of the Polk Avenue Project. Jeff Wiggins, Parks and Recreation Department, requested a two week postponement to allow for continued negotiations between the parties. Mr. Brown moved to approve in an amount not to exceed \$107,505.38, seconded by Mr. Valdez. Mr. Brown moved to postpone to January 26, 2015, seconded by Mr. Valdez. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] Change Order No. 1 to accepted Bid #R-17-14 for furnishing two new 2014-2015 cab and chassis units with rear load sanitation refuse collection bodies, 25 cubic yard with tippers, for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Change Order No. 1 to accepted Bid #R-18-14 for furnishing one new 2014-2015 roll-off truck for the City of Cheyenne Sanitation Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Change Order No. 1 to accepted Bid #R-27-14 for furnishing two new cab and chassis units with 40 yard front loader refuse collection bodies for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Change Order No. 1 to accepted Bid #R-11-15 for furnishing one new 2014-2015 small dozer (CAT D5K5-2 LGP or equal) for the City of Cheyenne, Landfill Division (Solid Waste Fund) -- referred to Finance Committee.

Change Order No. 1 to accepted Bid #R-16-14 from Peterbilt of Wyoming, Cheyenne, Wyoming, for cab and chassis units with automated refuse collection packer body with dual arm side loaders for the City of Cheyenne (Solid Waste Equipment Lease) -- referred to Finance Committee. Mr. Brown advised the item was discussed under other items for the agenda at Finance Committee and that provisions of Title 2 of City Code had been met. Vicki Nemecek, Public Works Director, advised the change order will bring the equipment lease agreement into compliance with state statute, advising that recent restructuring of the lease now requires the financial institution own and title the equipment and that the trade-in process must be a separate financial exchange. She stated the change order involves three trade-ins in which the City will retain one of the trucks, due to a

recent truck fire, and that the trucks have been received and placed into service. Ms. Nemecek explained approval of the change order will allow for payment to the vendor. Mr. Brown moved to approve in the amount of \$68,500.00, seconded by Mr. Valdez. Upon inquiry, Ms. Nemecek advised the truck that was damaged due to the fire will be declared as surplus. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Change Order No. 1 to accepted Bid #R-13-15 from Stotz Equipment, Cheyenne, Wyoming, for one new 2014 - 2015 utility farm tractor for the City of Cheyenne, Landfill Division (Solid Waste Equipment Lease) -- referred to Finance Committee.

[CA] Authorization to purchase one John Deere 772G Motor Grader with 6wd, new 2015 model under Wyoming Department of Transportation Bid #15-038MD, for the Street and Alley Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$273,156.00).

[CA] Consideration of Bid #M-8-15 for a contract between the City of Cheyenne, Parks & Recreation Department, and Construction Specialists, Inc., Cheyenne, Wyoming, for the Airport Golf Shop Grinding Room Addition Project (2011 - 2014 1% Sales Tax, Golf Capital Equipment Fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-18-15 for furnishing eight new thermal imaging cameras for the City of Cheyenne, Fire and Rescue Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-11-15 for a contract between the City of Cheyenne, Police Department, and Beka Corporation, Rapid City, South Dakota, for fiber optics for the Cheyenne Public Safety Center Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

Re-Appointments of Russell Pollard to the Police Civil Service Commission; Ann Esquibel Redman to the Personnel Commission, and Rick Ammon and Wes Peterson to the Historic Preservation Board. Mr. Luna moved to approve, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointees).

Appointments of Kathryn O. Fay and Christina Bird to the Historic Preservation Board, and George Parks to the Police Civil Service Commission. Mr. Brown moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointees).

[CA] Consideration of purchase from Improve Group, Inc., to provide and install high density mobile shelving in the Property and Evidence Division for the new Cheyenne Public Safety Center (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

Announcement was made of the Re-Appointment of Ted Gertsch to the Housing and Community Development Advisory Council, to be confirmed January 26, 2015.

Announcement was made of the Appointments of Nicholas A. Zuhner to the International Fire Code Board of Appeals, William Sean Casey and Gabriel Herrera to the Building Code Board of Appeals; Caroline Alston, Angel Antunez, Elizabeth Babbitt, Molly Black, Alex Cole, Shayna Engdahl, Alexandra Farkas, Lexi Ferrari, Liam Guille, Rachel Moseley, Yvette Moyte, Emily Piel, Aly Rowe, Jason Weber, Darnell Wheeler Jr., and Katelyn Williams to the Mayor's Youth Council; to be confirmed January 26, 2015.

Announcement was made that due to the Martin Luther King, Jr. Holiday on Monday, January 19, 2015, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 20, 2015 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 21, 2015 at Noon.

Under other business, Deb Kellam, Martha Silver and Ben Silver expressed concerns with bicycle lane striping planned for Carey and Pioneer Avenues in conjunction with the On-Street Bicycle Striping and Signage Project. Comments included the following topics: Safety of bicyclists; street obstacles affecting bicyclists; re-evaluating the contract that has been approved for striping and signage services; components of a historic neighborhood; high volume traffic on the streets, including use by emergency responders; grant funding for the project and whether approval was required by the Historic Preservation Board, and the difference between bicycle lane striping vs. signage markings. Mayor Kaysen requested Mr. Wiggins review grant requirements regarding the inquiry involving the Historic Preservation Board and provide information after his review. Upon inquiry, Mr. Wiggins referenced a map of streets involved in the bike lane striping and signage project, explained the different markings (in color on the map) that will be placed on the street and what they mean, and vehicle parking availability. He stated Carey and Pioneer Avenues are each one-way couplets and were selected for the project based on their high value as a connector route and input from bicycle users who want better connectivity between downtown and north portion of the City. He explained the project will provide for guidance on sharing the roadway for bicyclists and vehicle drivers; described what will be placed on the streets for striping lanes vs. signage, and reviewed the planning process for the project that began in 2010 which focused on ways to improve the greenway and bicycle lanes to provide a complete loop around the City. Mr. Wiggins provided information on review of the project for compliance with bicycle codes and laws, and by WYDOT and the State Historic Preservation Office; discussed options for providing public education on the street markings, and commented that video signal detection at the Pershing intersection will be implemented. In response to query on status of the current contract with the company that will be providing striping and signage services, and whether the contract could be cancelled, Mayor Kaysen advised the legal department would need to be involved as there are legal considerations to review. Mr. Shanor moved that a report, in the form of an agenda item, be provided at the January 26, 2015 City Council meeting by the City Attorney and Mr. Wiggins, and any other interested parties, on the following issues: (1) Grant funding requirements relative to the Historic Preservation Board; (2) whether a shared lane marking depicted in red or orange color and/or the blue colored bike lane (colored areas as shown on the previously referenced map) relate to or meet provisions of City Code

Section 10.80.080 which discusses parking on a bike way, and particularly subsection "G", which states where parking is permitted and, if not, what action needs to be taken, and (3) a memorandum from the City attorney, which may be issued as confidential to Council members, on the legal implications and processes that would be required if there could be an amendment to a contract already agreed to or, if desired, how to end a contract. The motion was seconded by Mr. Luna. Ms. Kellam questioned whether a contract already signed can be amended or negotiated to just have a stencil marking to focus attention on bicycle use in the area instead of a solid bike lane marking. Upon inquiry regarding whether street markings are considered to be historic, Nathan Beauheim, Acting City Engineer, advised the federal highway's perspective is that buildings and properties are historic but roads, signs, asphalt, etc. are not considered to be historic. Upon inquiry regarding the funneling of bicyclists in this area (of the Avenues) and how many bicyclists use the streets, Mr. Wiggins noted the closest bike count area studied was at 8th and Carey Avenues and he would provide that information to City Council. Comments followed regarding public service announcements to provide community education on the bike lane striping and signage markings, and whether a motion was needed vs. administrative review procedures. Motion carried. Voting "yes" -- all members of the governing body.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:27 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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